



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00115 Saddle Ridge, 16th Filing Annexation
Date: May 10, 2021

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/10/2021
- Public Services Committee 5/18/2021
- Second reading 5/24/2021
- Public Services Committee 6/8/2021
- Third and final reading 6/14/2021

Related Items:

- Saddle Ridge, 16th Filing Zone Change (UDC-21-00116)
- Saddle Ridge, 16th Filing Final Plat (UDC-21-00102)

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED NORTH OF PERSHING BOULEVARD, WEST OF CHRISTENSEN ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That WJE, LLC, owners of:

A parcel of land, located in the east half of Section 25, Township 14 North, Range 66 West of the 6th P.M., Laramie County, more particularly described as follows:

Beginning at a point on the north right of way of Pershing Boulevard from which the E $\frac{1}{4}$ corner of Section 25, T.14N., R.66W., of the 6th P.M., bears N35°18'49"E, a distance of 678.48 feet; thence S65°53'48"W, a distance of 390.00 feet to the easterly line of Saddle Ridge 13th Filing; thence along said easterly line, N24°04'33"W, a distance of 434.02 feet to a point; thence 31.42 feet along said easterly line on a curve to the right, through an angle of 90°00'00", having a radius of 20.00 feet, and whose long chord bears N20°55'27", a distance of 28.28 feet to a point; thence continuing along the easterly line of Saddle Ridge 13th Filing, N10°37'24"W, a distance of 61.69 feet to a point; thence N65°55'27"E, a distance of 361.65 feet to a point; thence S24°04'33"E, a distance of 332.00 feet to a point; thence S65°55'27"W, a distance of 6.00 feet to a point; thence S24°04'33"E, a distance of 181.84 feet to the point of beginning.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-1 Agricultural and Rural Residential by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____



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Planning and Development Department

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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

MAY 10, 2021

STAFF REPORT

FILE: UDC-21-00115: Annexation of Saddle Ridge, 16th Filing

REQUEST: An annexation of 4.3 acres of land

LOCATION: North of Pershing Boulevard, west of Christensen Road.

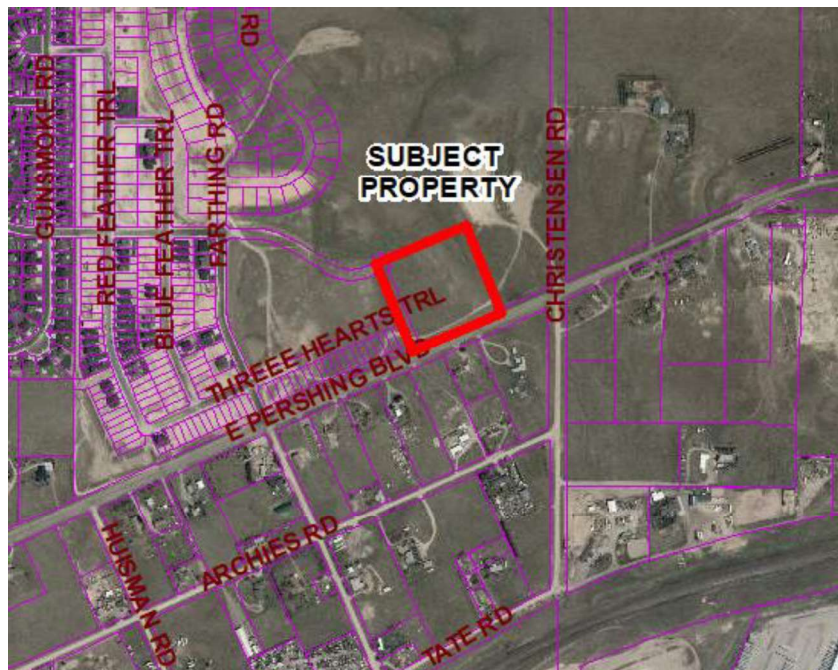
APPLICANT: WJE, LLC

AGENT: John Sayers, WJE, LLC

OWNER: WJE, LLC

PURPOSE: To allow urban-level residential development

PREPARED BY: Seth Lloyd, Planner II - Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing of 4.3 acres of land for future single-unit residential development. The County Assessor presently shows the tract of land as part of one larger unplatted parcel. The land is currently undeveloped in the County. A zone change and plat are proposed concurrently with this annexation. All three applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County A-1 Agricultural and Rural Residential to the City zone of MR Medium-density Residential.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County A-1	Undeveloped
North	Urban Residential	County A-1	Undeveloped
South	Urban Residential	County AR	Low density Single-family Residential
East	Urban Residential	County A-1, County A-2	Rural Residential
West	Urban Residential	MR, P	Single-family Residential

The property is currently zoned A-1 Agricultural in the County. The property is concurrently proposed to be annexed and rezoned to the MR Medium-density Residential. The MR zone is generally described as a primarily residential zone with compact neighborhood development patterns. The district generally allows a variety of residential uses with some smaller-scale civic or commercial uses.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the occupants of future development once it is built. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property will also be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

- 2) **The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]**

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The contiguity to the west makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) **The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. City water and sewer lines exist in the vicinity and could be extended with the development of the property.

The application **complies** with this review criterion.

- 4) **The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is about 28.5% contiguous, along the western edge.

The application **complies** with this review criterion.

- 5) **If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) **The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on April 8, 2021. The public hearing for this annexation is scheduled for May 10, 2021. Twenty (20) business days prior to the announced public hearing is April 12, 2021. The earliest confirmation of receipt was dated April 9, 2021.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne anticipates this area of the community to develop with an urban residential style of development. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. Policies in PlanCheyenne support development within the Urban Service Boundary and the utilization of existing infrastructure.

STAFF REVIEW:

Through the review process, comments were made encouraging annexation of the property for the provision of City services.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and services typically available to urban areas are available to this property.

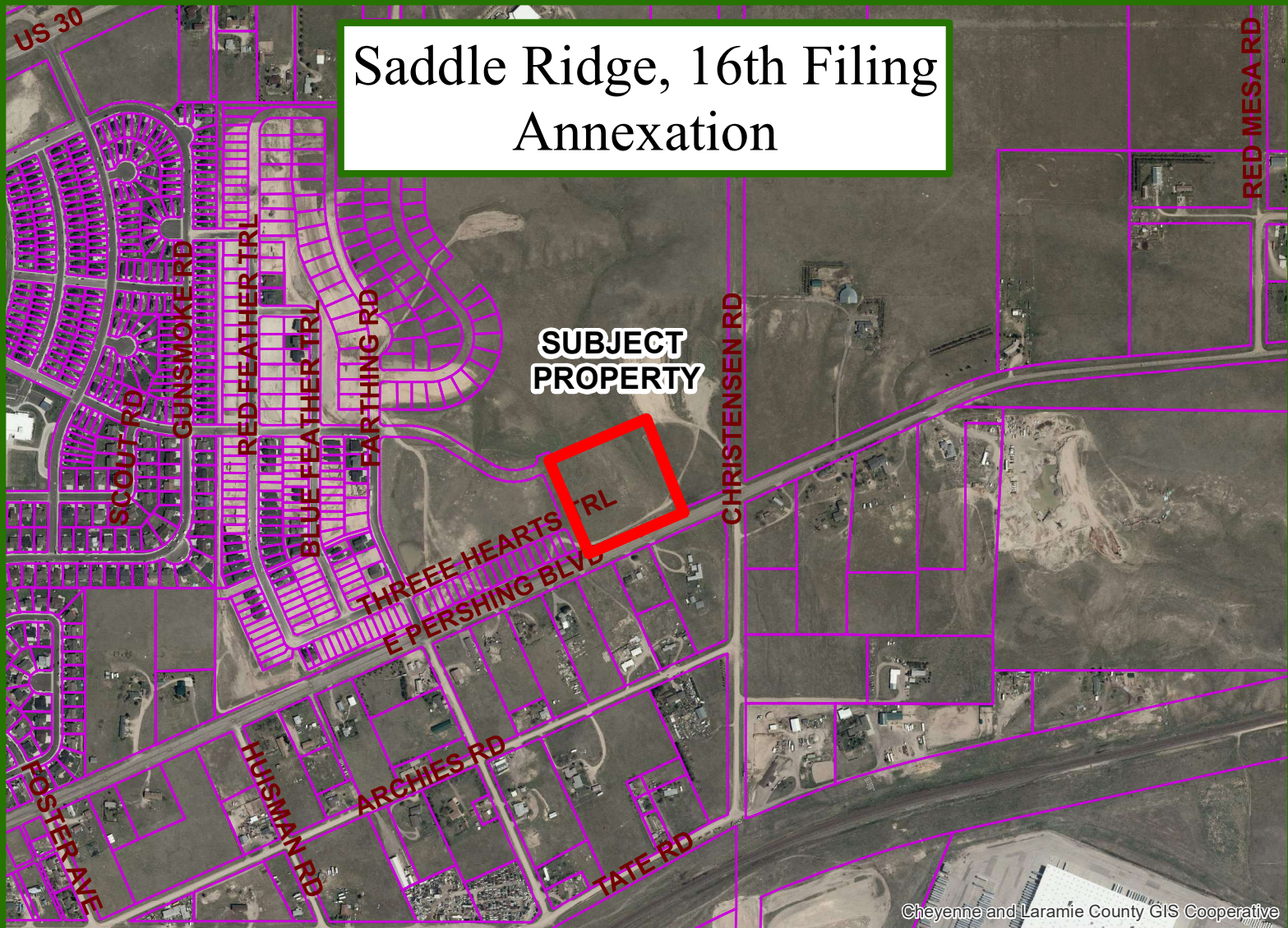
STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

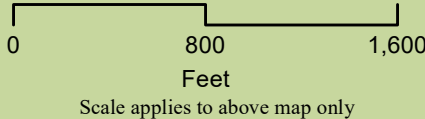
1. Aerial, Current City Limits, and Future Land Use Map
2. Submitted Application
3. Applicant-submitted annexation map

Saddle Ridge, 16th Filing Annexation



Cheyenne and Laramie County GIS Cooperative

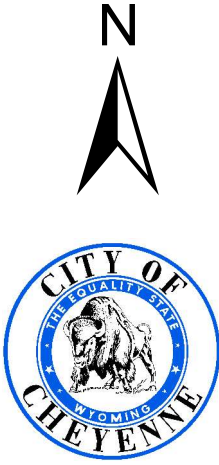
Application Number: UDC-21-00115
 Applicant: WJE, LLC
 John Sayers
 Owner: WJE, LLC



Current City Limits



Cheyenne and Laramie County
GIS Cooperative



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Annexation Application

Submission date: **29 March 2021, 11:24AM**
Receipt number: **8**
Related form version: **8**

General Information

Applicant Name:	WJE, LLC
Applicant Address:	506 Shoshoni Street
Applicant City:	Cheyenne
Applicant State:	WY
Applicant Zip Code:	92009
Applicant Phone:	307-634-8400
Applicant Email	johns@edwards-development.com
Representative Name:	John Sayers
Representative Address:	506 Shoshoni Street
Representative City	Cheyenne
Representative State:	Wy
Representative Zip Code:	82009
Representative Phone:	307-634-8800 x 102
Representative Email:	johns@edwards-development.com
Owner Name:	WJE, LLC
Owner Address:	506 Shoshoni Street
Owner City:	Cheyenne

Owner State:	WY
Owner Zip Code:	82009
Owner Phone:	307-634-8400
Owner Email:	johns@edwards-development.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Ltr to adjacent Land Owners.pdf
Project Location (Street Address or General Location):	East of Dixon Drive Between Wilderness and Pershing Boulevard
Assessor's Parcel ID number(s)	14662510001800
Total Project Area	4.30 ACRES\187,476 S.F.
Current Zoning	County A-1
Proposed Zoning	MR - Medium-density Residential

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	Unplatted
Formal Annexation Petition	petition for annexation sr16.pdf
Board of Public Utilities Clearance Form	ltr from Herman.pdf
Annexation Map	ANNEXATION_16TH FILING-ANNEXATION.pdf

Signature / Certification

Applicant Signature	Name of signatory: John Sayers  Link to signature
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Please enter an email address for an email receipt.

johns@edwards-development.com



Planning and Development Department – ANNEXATION PETITION

PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, PATRICK COLLINS,**

AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:

KNOW ALL THAT WJE, LLC,
Owner name(s)

The undersigned owners, hereby petition to annex to the City of Cheyenne,
Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

SEE ATTACHED

The undersigned petitioners hereby respectfully request that said property and adjacent streets be annexed to the City of Cheyenne, and be made a part thereof.

By submitting the petition for annexation, the undersigned agree to abide with all applicable provisions and City ordinances, rules, and regulations involving annexation.

A PARCEL OF LAND, LOCATED IN THE EAST HALF OF SECTION 25, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT FROM WHICH THE E $\frac{1}{4}$ CORNER OF SECTION 25, T.14N., R.66W., OF THE 6th P.M., BEARS N37°50'07"E, A DISTANCE OF 661.89; THENCE S65°55'27"W, A DISTANCE OF 390.00 FEET TO THE EASTERLY LINE OF SADDLE RIDGE 13th FILING; THENCE ALONG SAID EASTERLY LINE, N24°04'33"W, A DISTANCE OF 400.00 FEET TO A POINT; THENCE 31.42 FEET ALONG SAID EASTERLY LINE ON A CURVE TO THE RIGHT, THROUGH AN ANGLE OF 90°00'00", HAVING A RADIUS OF 20.00 FEET, AND WHOSE LONG CHORD BEARS N20°55'27", A DISTANCE OF 28.28 FEET TO A POINT; THENCE CONTINUING ALONG THE EASTERLY LINE OF SADDLE RIDGE 13th FILING, N10°37'24"W, A DISTANCE OF 61.69 FEET TO A POINT; THENCE N65°55'27"E, A DISTANCE OF 361.65 FEET TO A POINT; THENCE S24°04'33"E, A DISTANCE OF 332.00 FEET TO A POINT; THENCE S65°55'27"W, A DISTANCE OF 6.00 FEET TO A POINT; THENCE S24°04'33"E, A DISTANCE OF 148.00 FEET TO THE POINT OF BEGINNING. CONTAINING 4.30 ACRES MORE OR LESS.



Planning and Development Department – ANNEXATION PETITION

Attach additional sheet if necessary.

Signature [Signature] Printed Name JOHN EDWARDS Date 3/29/2021

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

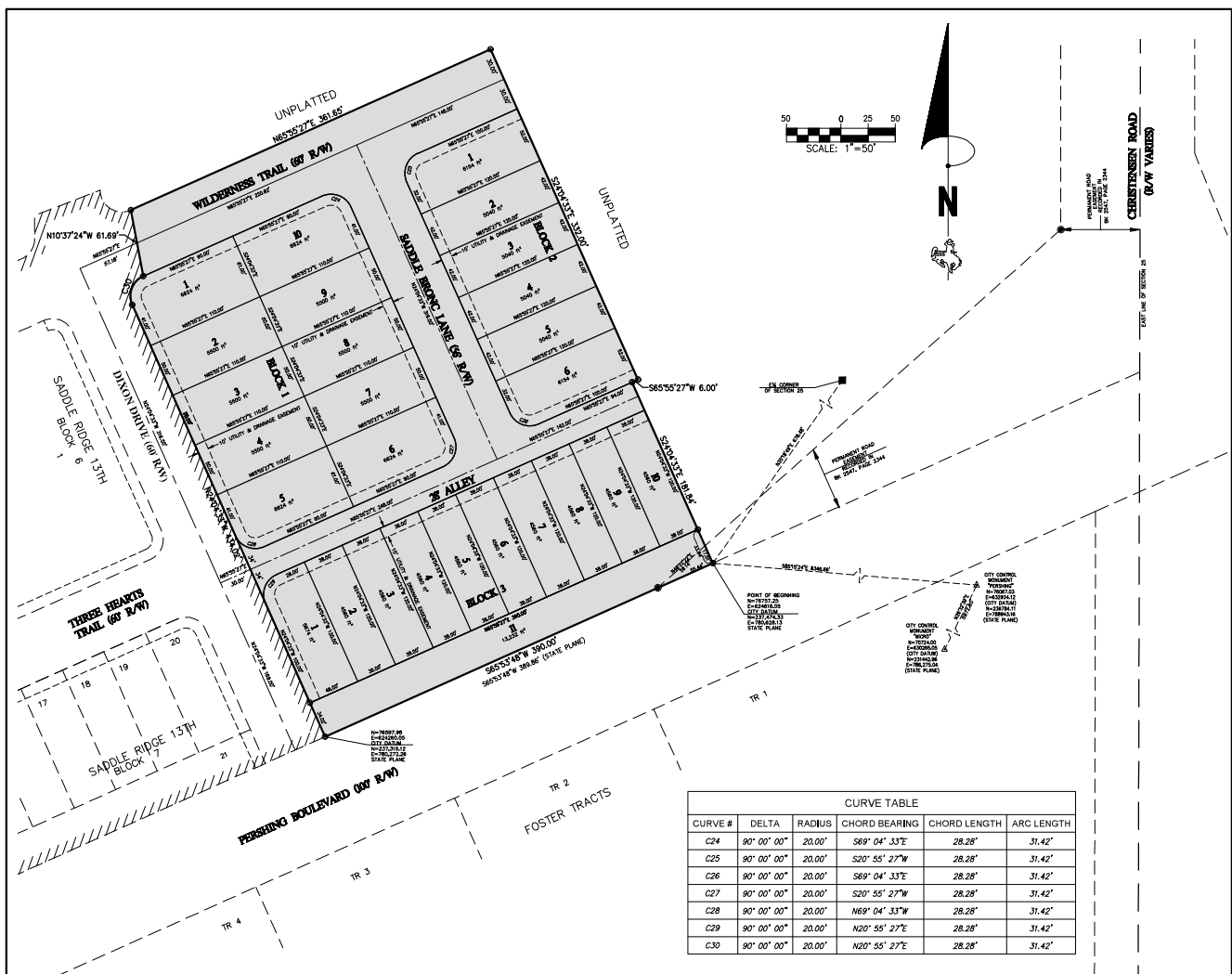
Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest:



CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C24	90° 00' 00"	20.00'	S89° 04' 33"E	28.28'	31.42'
C25	90° 00' 00"	20.00'	S20° 55' 27"W	28.28'	31.42'
C26	90° 00' 00"	20.00'	S89° 04' 33"E	28.28'	31.42'
C27	90° 00' 00"	20.00'	S20° 55' 27"W	28.28'	31.42'
C28	90° 00' 00"	20.00'	N69° 04' 33"W	28.28'	31.42'
C29	90° 00' 00"	20.00'	N20° 55' 27"E	28.28'	31.42'
C30	90° 00' 00"	20.00'	N20° 55' 27"E	28.28'	31.42'

GENERAL NOTES

- 1.) BASIS OF AZIMUTH - CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "MICRO" AND "PERSHING"
- 2.) THIS PROPOSED ANNEXATION DOES NOT FALL WITHIN ANY FEMA 100 YEAR FLOOD PLAIN ACCORDING TO F.E.M.A. MAP PANEL NO. 56021C1114F DATED JANUARY 17, 2007.
- 3.) WATER AND SEWER TO BE PROVIDED BY CITY OF CHEYENNE BOPU.
- 4.) ALL UTILITIES TO BE PROVIDED ADJACENT TO PARCEL
- 5.) NEAREST FIRE HYDRANT AT INTERSECTION OF EXISTING DIXON DRIVE AND PERSHING BOULEVARD.
- 6.) CURRENT INCORPORATED CITY LANDS ABOUT APPROXIMATELY 28.49%

LEGEND

- FOUND GLO STONE
- ALL LOT CORNERS, ANGLE POINTS, AND CURVE POINTS TO BE SET WITH A 3" X 24" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S 5910"
- FOUND 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S 5910"
- △ CITY CONTROL MONUMENT
- ▨ PROPOSED AREA FOR ANNEXATION
- ▨ LANDS CURRENTLY INCORPORATED WITH THE CITY OF CHEYENNE CORPORATE LIMITS

DESCRIPTION

A PARCEL OF LAND, LOCATED IN THE EAST HALF OF SECTION 25, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT ON THE NORTH RIGHT OF WAY OF PERSHING BOULEVARD FROM WHICH THE E 1/4 CORNER OF SECTION 25, T.14N., R.66W., OF THE 6TH P.M., BEARS N35°18'49"E, A DISTANCE OF 678.48 FEET; THENCE S65°53'48"W, A DISTANCE OF 390.00 FEET TO THE EASTERLY LINE OF SADDLE RIDGE 13TH FILING; THENCE ALONG SAID EASTERLY LINE, N24°04'33"W, A DISTANCE OF 434.02 FEET TO A POINT; THENCE 31.42 FEET ALONG SAID EASTERLY LINE ON A CURVE TO THE RIGHT, THROUGH AN ANGLE OF 90°00'00", HAVING A RADIUS OF 20.00 FEET, AND WHOSE LONG CHORD BEARS N20°55'27", A DISTANCE OF 28.28 FEET TO A POINT; THENCE CONTINUING ALONG THE EASTERLY LINE OF SADDLE RIDGE 13TH FILING, N10°37'24"W, A DISTANCE OF 61.69 FEET TO A POINT; THENCE N65°55'27"E, A DISTANCE OF 361.65 FEET TO A POINT; THENCE S24°04'33"E, A DISTANCE OF 332.00 FEET TO A POINT; THENCE S65°55'27"W, A DISTANCE OF 6.00 FEET TO A POINT; THENCE S24°04'33"E, A DISTANCE OF 181.84 FEET TO THE POINT OF BEGINNING. CONTAINING 4.61 ACRES MORE OR LESS.

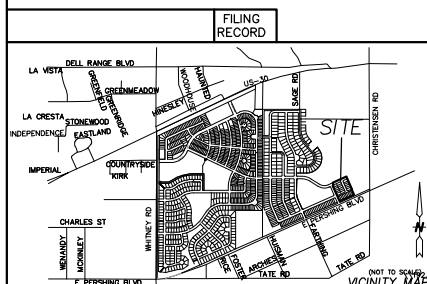
ZONING

CURRENT ZONING A-1
PROPOSED ZONING MR

APPROVALS

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, WYOMING, THIS _____ DAY OF _____, 2021.

ATTEST: _____
MAYOR CITY CLERK



CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Stell Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

ANNEXATION MAP FOR SADDLE RIDGE 16th FILING

A PORTION OF THE EAST HALF OF SECTION 25, T.14N., R.66W., OF THE 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

PREPARED April 21 PAGE 1 OF 1



STELL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
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700 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 588-9700
www.stellsurvey.com • info@stellsurvey.com

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1408B 16th FILING
16th FILING UPDATING
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